

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
LEYSON M. VARGAS,

Plaintiff,

- against -

THE CITY OF NEW YORK and P.O. JAY RICHIEZ,

Defendants.
-----X

To the above named defendant:

Index No.:

Filed:

Plaintiff designates

KINGSCounty as the place
of trial

The basis of venue is:

Place of occurrence

SUMMONS

Plaintiff resides at:

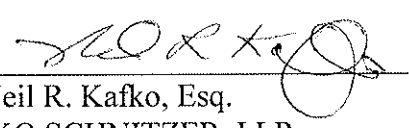
220 East 18th Street

Brooklyn, New York 11226

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the date of the service (or within 30 days after the service is complete if this summons is not personally delivered to you with the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York

October 1, 2013


By: Neil R. Kafko, Esq.

KAFKO SCHNITZER, LLP

Attorneys for Plaintiff

7 Hugh J. Grant Circle

Bronx, New York 10462

(718) 319-8902

Defendant's address:

The City of New York and P.O. Jay Richie

100 Church Street, 4th Floor

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LEYSON M. VARGAS,

Plaintiff,

VERIFIED
COMPLAINT

- against -

THE CITY OF NEW YORK and P.O. JAY RICHIEZ,

Defendants.

-----X

Plaintiff, by KAFKO SCHNITZER, LLP, his attorneys, for his complaint herein,
respectfully alleges:

AS FOR THE FIRST CAUSE OF ACTION
IN FAVOR OF PLAINTIFF LEYSON M. VARGAS

1. That plaintiff has complied with all of the conditions precedent to the bringing of this action and more particularly on or about November 30, 2012 and within 90 days after the date of the occurrence hereinafter set forth, plaintiff duly served a written notice of claim upon the City of New York, pursuant to law, said notice being verified by oath of plaintiff; that this action is brought within one year and ninety days after said occurrence; that more than 30 days have elapsed since service of said notice and said claim remains unadjusted.

2. That on October 5, 2012 plaintiff was properly and legally at or about 220 East 18th Street, Brooklyn, NY.

3. That on said date, defendants employed certain police officers at the 70th police precinct.

4. That on said date, defendant THE CITY OF NEW YORK employed defendant P.O. JAY RICHIEZ as a police officer assigned to said precinct.

5. At said time and place, plaintiff was properly conducting himself thereat.

6. As said time and place plaintiff was arrested and detained by certain New York City Police Officers including defendant P.O. JAY RICHIEZ, without provocation, probable cause and without plaintiff's consent.

7. At said time and place, plaintiff was handcuffed and taken to the 70th precinct without his consent where he was detained, searched, jailed, and transported to Central Booking, arraigned, and jailed, until his release on or about October 6, 2012.

8. At said time and place, defendant THE CITY OF NEW YORK's police officers including the defendant P.O. JAY RICHIEZ, detained and arrested plaintiff during the scope and in the course of their employment for defendant.

9. That on numerous occasions, plaintiff was caused to and did appear in Criminal Court, Kings County for trial on charges of which he was wholly innocent.

10. That defendants, through their agents and /or employees, knew or should have known that the charges against plaintiff were false.

11. That on March 19, 2013, before Hon. J. Gerstein, the aforesaid charges were totally dismissed.

12. That the aforesaid detention, arrest, charges, imprisonment and prosecution were unreasonable and without cause or probable cause.

13. That as a result of the foregoing false imprisonment and false arrest of this plaintiff, he sustained mental distress, anguish, humiliation and embarrassment,

deprivation of liberty, and was unable to attend to his usual customary duties and activities, and lost earnings.

AS FOR THE SECOND CAUSE OF ACTION
IN FAVOR OF PLAINTIFF LEYSON M. VARGAS

14. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs numbered 1 through 13 of the verified complaint with the same force and effect as if more fully set forth herein at length herein.

15. That defendant THE CITY OF NEW YORK, respectively, had a legal and/or lawful duty to properly train and supervise its employees, agents and/or servants employed as police officers, in the proper techniques and protocol in engaging in all activities and circumstances related to and associated with their respective scope and duties as police officers in the City of New York.

16. That the aforesaid unlawful, illegal and improper acts of the abovementioned police officers, particularly that of the defendant P.O. JAY RICHIEZ, were caused solely by reason of the negligence and carelessness of respective defendant THE CITY OF NEW YORK in employing and retaining in its employ, dangerous, troublesome, incompetent, untrustworthy and rogue persons, including the defendant P.O. JAY RICHIEZ, who they knew, or should have known was a source of danger or menace to the lives, liberty and freedom of those persons lawfully present in the County of Kings, City and State of New York.

17. That defendant THE CITY OF NEW YORK, respectively, their agents, servants and/or employees failed to exercise reasonable care in the hiring, retention,

training, disciplining and supervising of the aforesaid individual police officers herein mentioned.

18. That by reason of the foregoing, plaintiff has suffered injuries and damages as aforesaid and defendant, THE CITY OF NEW YORK, respectively, is liable for such injuries and damages.

19. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

AS FOR THE THIRD CAUSE OF ACTION
IN FAVOR OF PLAINTIFF LEYSON M. VARGAS

20. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs numbered 1 through 19 of the verified complaint with the same force and effect as if more fully set forth herein at length herein.

21. Upon information or belief, on or about October 5, 2012 and from that time until the dismissal of charges on or about March 19, 2013, Defendants, their agents and/or employees, deliberately and maliciously prosecuted plaintiff an innocent man without probable cause, by filing or causing a complaint to be filed in Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing Plaintiff of violation of the criminal laws of the State of New York.

22. The defendants, their agents and/or employees failed to take reasonable steps to stop the prosecution of plaintiff and instead maliciously and deliberately provided

false and/or incomplete information to the District Attorney's office to include the prosecution of Plaintiff.

23. That the commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceeding could succeed by Defendant.

24. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustrations of an unjust criminal prosecution and made multiple court appearances to defend his liberty against these unjust charges, sustained legal fees and lost earnings.

WHEREFORE, plaintiff demands judgment against defendant for the First, Second and Third causes of action for a sum for a money in excess of the jurisdictional limits of any lower Court which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
October 1, 2013


By: Neil R. Kafko, Esq.
KAFKO SCHNITZER, LLP
Attorneys for Plaintiff
7 Hugh J. Grant Circle
Bronx, New York 10462
(718) 319-8902

STATE OF NEW YORK)
) SS.:
COUNTY OF BRONX)

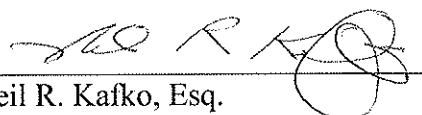
The undersigned, an attorney admitted to practice in the Courts of the State of New York affirms under the penalties of perjury as follows:

That he is associated with the attorneys of records for plaintiffs; has read the foregoing **SUMMONS and COMPLAINT** and knows the contents thereof; that the same is true to his knowledge except as to the matters therein stated to be alleged on information and belief and as to those matters; he believes them to be true.

He further says that the reason this verification is made by him and not by plaintiffs is that plaintiffs is not within the County wherein the attorneys have their offices.

The grounds of his belief as to all matters not stated upon his knowledge are information obtained from plaintiff and from the file.

Dated: October 1, 2013


By: Neil R. Kafko, Esq.

Index No.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LEYSON M. VARGAS,

Plaintiff,

- against -

THE CITY OF NEW YORK and P.O. JAY RICHIEZ,

Defendants.

SUMMONS AND COMPLAINT

KAFKO SCHNITZER, LLP
Attorneys for Plaintiff
7 Hugh J. Grant Circle
Bronx, NY 10462
(718) 319-8902

TO:

Attorney(s) for

Service of a copy of the within
Dated,

is hereby admitted.

Attorney(s) for

Please take notice

☐ Notice of entry

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on , 20

☐ Notice of settlement

That an order of which the within is a true copy will be presented for settlement to the
HON. one of the judges of the within named court, at
on 20 at M.

Dated:

Yours, etc.,
KAFKO SCHNITZER, LLP
Attorneys for Plaintiff
7 Hugh J. Grant Circle
Bronx, New York 10462
(718) 319-8902